Marbury v. Madison

Chief Justice John Marshall · 1803

Source: Marbury v. Madison, 5 U.S. 137 (1803). Public domain. Continuous passage.

> Marshall's landmark ruling established judicial review — the power of the courts to strike down laws that violate the Constitution — making the judiciary a co-equal branch of government.

It is emphatically the province and duty of the Judicial Department to say what the law is. Those who apply the rule to particular cases must, of necessity, expound and interpret that rule. If two laws conflict with each other, the Courts must decide on the operation of each. So, if a law be in opposition to the Constitution, if both the law and the Constitution apply to a particular case, so that the Court must either decide that case conformably to the law, disregarding the Constitution, or conformably to the Constitution, disregarding the law, the Court must determine which of these conflicting rules governs the case. This is of the very essence of judicial duty. If, then, the Courts are to regard the Constitution, and the Constitution is superior to any ordinary act of the Legislature, the Constitution, and not such ordinary act, must govern the case to which they both apply.